

to which that skill was applied, and declarations from other attorneys regarding prevailing fees in the community and rate determinations in other cases. (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 41.)

The Court finds counsels' hourly rates adequately supported and reasonable given counsels' experience and the nature of the dispute. (See Danna Decl., ¶¶ 30, 32-33 and Ex. J-R; see also, *Baer v. Tedder* (2025) 115 Cal.App.5th 1139, 1160-1161.) Defendant argues the hourly rates are unreasonable. However, Defendant failed to present any evidence to rebut the hourly rates requested.

The Court finds the requested multiplier not justified on the record presented and thus the request for a multiplier is denied.

The Court has reviewed the billing records submitted by Plaintiff's counsel and determines, with the exceptions noted below, the fees claimed are generally reasonable in light of the circumstances of this case. In the Reply, Plaintiff withdrew his request for \$1,030 for anticipated time to oppose Defendant's motion to tax costs, as no motion to tax costs was filed. Thus, \$1,030.00 shall be deducted from the fee award.

In the Opposition, Defendant argues the billing records show duplicative and unreasonable billing entries which should be stricken or reduced. In terms of duplicative billing, Defendant lists five examples, none of which clearly show duplicative billing. Rather, these entries appear to show either different tasks or continuation of the same task on different days. Plaintiff confirms as much in the Reply.

In terms of unreasonable billing entries, Defendant is correct that the flat fee entry for \$3,900 for "all services rendered prior to the preparation of the Complaint" appears excessive. (See Ex. A, 7/24/25 entry.) As there is no breakdown of the specific hours spent on these tasks, the Court is unable to determine if the entirety of time spent on this entry is reasonable. The Court will allow \$1,800 for this entry. This results in a reduction of \$2,100.

The Court agrees with Defendant that 6 hours to review the opposition, prepare a reply and attend the hearing on this motion is excessive. The Court will allow 4 hours for these tasks at the \$515 hourly rate, which results in a reduction of \$1,030.

Defendant has not shown any other entries should be reduced as excessive or unreasonable.

Based on the foregoing, Plaintiff is awarded attorney's fees in the reduced sum of \$24,487.50.

Plaintiff's unchallenged request for costs and expenses in the amount of \$2,417.96 is **GRANTED**.

Counsel for Plaintiff is ordered to give notice of this ruling.

3	Salas vs. Capsule Manufacturing, Inc.	Solmer Law Group's ("Solmer") unopposed motion to be relieved as counsel for plaintiff Jennifer Salas ("Plaintiff") is DENIED without prejudice. Under California Rules of Court, Rule 3.1362(d), a motion to be relieved as counsel must be served on the client and on all other parties who have appeared in the case. Solmer has not filed a proof of service with the court at least five court days prior to the hearing. (Rule 3.1300(c).) As there is no evidence Plaintiff and the three defendants have been served, the motion is denied without prejudice to re-filing, properly serving all parties, and timely filing notice of service. Solmer to give notice of the ruling.
4	Creditors Adjustment Bureau, Inc. v. Societal CDMO, Inc.	O/C
5	Rancho Pacific Retail Partners LLC v. Hiccups Barista Inc.	Before the Court is a motion by defendants Hiccups Barista Inc. and Sky Hoang (Defendants) for leave to file an amended answer and a cross-complaint. As set forth below, the motion is GRANTED. Under Code of Civil Procedure section 473, the "court may, in furtherance of justice, and on any terms as may be proper, allow a party to amend any pleading. (Code of Civ. Proc. § 473, subd. (a), § 576.) Courts are bound to apply a policy of great liberality in permitting amendments to the complaint "at any stage of the proceedings, up to and including trial," absent prejudice to the adverse party. (<i>Atkinson v. Elk Corp.</i> (2003) 109 Cal.App.4th 739, 761; <i>Husley v. Koehler</i> (1990) 218 Cal.App.3d 1150, 1159 [policy of liberality is particularly true for amendments to answers].) Here, the Court finds the motion for leave to amend substantially complies with the requirements of California Rules of Court, rule 3.1324, and no prejudice has been shown. (Declaration of William T. Carlsen ¶¶ 4-5, Ex. B.) The motion for leave to file an amended answer is therefore GRANTED. A cross-complaint is compulsory if the cause of action "arises out of the same transaction, occurrence, or series of transactions or occurrences as the cause of action which the plaintiff alleges in the complaint." (Code of Civ. Proc. § 426.10, subd. (c).) A party acting in good faith may apply to the court for leave to file a cross-complaint, at any time during the course of the action. (Code of Civ. Proc. § 426.50.) Leave to file compulsory cross-complaint is mandatory absent bad faith. (<i>Silver Organizations, Ltd. v. Frank</i> (1990) 217 Cal.App.3d 94, 98-99.) Here, the Court finds the proposed cross-complaint contains causes of action related to the causes of action pleaded by Plaintiff in the complaint and is thus, compulsory. (Carlsen Decl., Ex. B.) No bad faith has been shown. While some of these cross-claims are also alleged against a new party, leave to amend to file a permissive cross-complaint may be granted "in the interest of justice" at any time during the course of